

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

Talking About Software Contracts!



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Define strategies to make terms of reference and supplier assessment processes, in technology acquisition, based on established protocols.

Ask your partner:

- What's a software contract?
- Is it mandatory to have a software contract? Why? Why not?

Can Do Statements:

- I can talk about the importance of the warranty section in a software contract.
- I can list some questions to be asked when negotiating the warranty section in a software contract.
- I can discuss some provisions to include in a typical warranty section.





Let's Explore!

Where is my warranty?



Instructions: Read the text below.

Jim: I'm really upset because you're supposed to warrant my software contract.

Claire: It was like that. We are aware of the importance of the warranty. It's supposed to show what the software will or won't do.

Jim: The performance of the software is specified in this warranty.

Claire: That's why it has to be analyzed as carefully as possible because it shows the factors that can affect the software. The warranty is supposed to help you avoid detrimental effects.

Jim: Exactly. It was supposed to be like that. They told me the warranty would help me as much as I needed, but I've had many difficulties.

Claire: The best way to review the warranty section is by putting it into action, and the way to negotiate the contract is by asking some questions: First, what are the licensor's responsibilities in the warranty section? Second, what are the licensee's responsibilities? Third, what's a checklist of provisions that should be negotiated in the section? And finally, what's the general checklist of provisions that is supposed to be included? Every question on the checklist is as important as the others.

Jim: I think we were supposed to analyze these questions in advance. What are those provisions that are included?

Claire: For instance, the licensor is supposed to certify that the software corresponds to the Functional Specifications. Besides, the provider must have the equipment to offer the services; therefore, the services are supposed to be performed in a workmanlike manner. The software also has to comply with all the laws and the software warranty must have a time period. All the provisions should be as clear as possible.

Jim: So, the warranty for my contract is supposed to have a time period, right?

Claire: Actually, It includes it and it expired two months ago.



Let's Practice!

Claire keeps some concepts in mind.

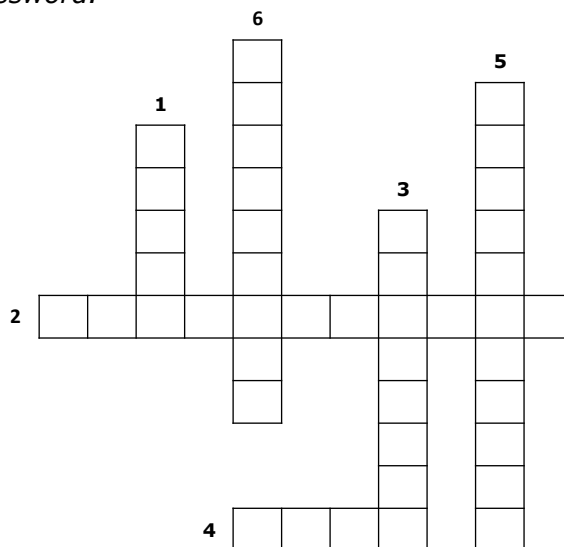
Instructions: Read the clues. Complete the crossword.

Down

1. to be angry or sad
3. a written agreement between two or more people
5. a person skilled to perform a specific job
6. a list of goals to be achieved

Across

2. something that causes loss
4. indicates an obligation



Let's Practice!

Claire explains the software contract to her brother Jack.

Instructions: Complete the sentences by writing its corresponding word. Use capital letter where necessary. Use: is supposed to tell / is supposed to negotiate / is supposed to assist / is supposed to help / is supposed to show.

1. Well, the warranty section in a contract is important because it _____ what the specific software will do.
2. Also, this section _____ both the performance and the licensor of the software.
3. Remember that a warranty section is really important as it _____ you avoid detrimental effects of your software.
4. You really need to ask for this section as it _____ you all the factors that can affect the software you get.
5. So, a software contract needs to have the warranty section because it _____ you with any possible difficulties on your software.





Extension Activity

Make a software warranty for a laptop!

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for more information about a warranty section in a software contract of a laptop.
- Design an example of a warranty section to be included in a software contract.
- Include the typical provisions in a warranty section.
- Share your work with your classmates.

Self-Assessment

Yes

No

- I research about what a warranty section is.
- I create a warranty section for a laptop software contract.
- I integrate the important parts of a warranty section in a self-created one.
- I show my work to classmates and discuss ideas with them.

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Target Words

- must** (verb): modal verb that indicates an obligation or something that is required.
e.g. Besides, the provider must have the equipment to offer the services.
- workmanlike** (adjective): something or someone efficient when performing a specific job or activity.
e.g. The provider must have the equipment to offer the services and therefore the services are supposed to be performed in workmanlike manner.
- checklist** (noun): list of activities or goals to be achieved.
e.g. What's a checklist of provisions that should be negotiated in the section?
- upset** (adjective): to be angry or sad.
e.g. I'm really upset because you're supposed to warrant my software contract.
- detrimental** (adjective): something that causes loss or negative consequences.
e.g. The warranty is supposed to help you avoid detrimental effects.
- contract** (noun): a written agreement between two or more people.
e.g. The warranty for my contract is supposed to have a time period. Right?



Learning Points

Be Supposed To in Present and Past Statements

Be supposed to in present and past statements is used when you want to talk about things that were or are expected to happen.

Be supposed to is used when you want to talk about things that were arranged to happen, or are/were considered to be a certain way.

Do not forget that a verb must be included following the structure **be supposed to**; the verb presents the action that is/was expected to happen.

This is the present tense structure:

Subject + **Be+ Supposed to + Verb** + Complement

Example:

*I **am supposed to sign** the software contract.*

And this is the past tense structure:

Subject + **Was/ Were+ Supposed to + Verb** + Complement

Example: *She **was supposed to go** over the contract immediately.*

Examples

- *You're supposed to warrant my software contract.*
- *It's supposed to show what the software will or won't do.*
- *It was supposed to be like that.*
- *I think we were supposed to analyze these questions in advance.*





Learning Points

Make Comparisons With As... As

If we want to establish **comparisons** between two elements, we can use the structure **as... as**.

As...as is used to make **comparisons** of equality. The sentences must have an **adjective** or **adverb** after the first **as**. This means that both elements have to be **equally clear**.

Example:

*The contract has to be **as clear as** the agreement.*

If we use a noun phrase, we need to include **much** or **many**, depending on the noun we will mention afterwards.

Example:

*It needs to include **as many details as** possible.*

On the other hand, if we want to compare two objects by pointing out that one of them does not possess a characteristic in the same degree as the other one, we can use **not as**.

Example:

*This software is **not as useful as** the one you bought.*

Examples

- *It has to be analyzed as carefully as possible.*
- *They told me it would help me as much as I needed it.*
- *Every question in the checklist is as important as the others.*
- *All the provisions should be as clear as possible.*

